



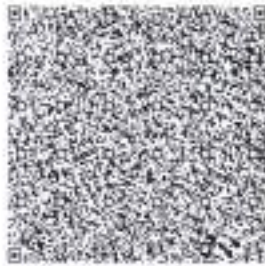
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Description of Document	: Article Others
Property Description	: Not Applicable
Consideration Price (Rs.)	: 0 (Zero)
First Party	: RENEW SOLAR ENERGY PVT LTD
Second Party	: Not Applicable
Stamp Duty Paid By	: RENEW SOLAR ENERGY PVT LTD
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POWER PURCHASE AGREEMENT

This Solar Photovoltaic (PV) Power Purchase/Sale Agreement is made, entered on 16th day of November 2017 between M/s. Renew Solar Energy Pvt Ltd, New Delhi, India and M/s. SRM Institute of Science & Technology Trust, Chennai, Tamil Nadu, India.

For SRM Institute of Science & Technology



Handwritten Signature
General Manager
SRM-Trichy Campus

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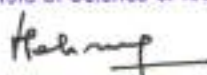
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For SRM Institute of Science & Technology


 General Manager
 SRM-Trichy Campus



POWER PURCHASE AGREEMENT

Between

M/s. RENEW SOLAR ENERGY PVT LTD

And

M/s. SRM INSTITUTE OF SCIENCE & TECHNOLOGY TRUST

This Solar Photovoltaic Program Power Purchase / Sale Agreement ("Agreement") is made, entered into and effective as of this date the 16th November 2017 by and between

M/s. Renew Solar Energy Pvt Ltd, a private limited company incorporated under the Companies Act, 1956, having its Registered Office at No: 138, Ansal Chambers II, Bikaji Cama Place, New Delhi-110 066, India and its Corporate Office at DLF Corporate Park, 6th Floor, Tower 4A, Mehrauli- Gurgaon Road, Gurgaon - 122 002, Haryana represented by Mr. Pankaj Verma - DGM, Distributed Solar (hereinafter referred to as "Power Producer", which expression shall, unless repugnant to the context or meaning thereof, include its successors and assigns) as party of the FIRST PART.

AND

M/s. SRM Institute of Science & Technology Trust, which runs various educational institutes across India having its Registered Office at No: 3, Veerasamy Street, West Mambalam, Chennai - 600 033, Tamil Nadu, India, represented by Mr. V. R. Mahenderan, General Manager (SRM Trichy Campus) (hereinafter referred to as "Off-taker", which expression shall, unless repugnant to the context or meaning thereof, include all its successors and permitted assigns) as party of the SECOND PART.

1. RECITALS

WHEREAS:

- A. The Power Producer is engaged in the business of electricity generation through renewable resources like Solar.
- B. The Off-taker owns Chennai Medical College Hospital & Research Centre (CMCHRC) and TRP Engineering College with available roof top with in its campus situated at Irungalur, Manachanallur (Taluk), Tiruchirappalli (District), 621 105, Tamil Nadu, India which the Off-taker agrees to make available to the Power Producer or at the Power Producer's discretion, to its assignees for the construction, operation and maintenance of a solar power generating plant having a capacity of 1,000 kW (+/-20%) on the rooftop (hereinafter referred to as "the Plant"), and to purchase from Power Producer the electric energy produced from the Plant, provided that the Power Producer shall provide the Off-taker with a list of such assignees. The Parties agree that the Power Producer or its assignees shall not have any lien on the Premises provided by the Off-taker in any shape or form whatsoever and the Off-taker and its assignees shall not have any lien on the Power Plant in any shape or form whatsoever.
- C. The Power Producer has represented to the Off-taker that the Plant shall be set up by the Power Producer. Further the Parties understand that the Power Producer may create a charge on the Solar Power Plant excluding the Premises on which the plant is erected, but in no event the

For SRM Institute of Science & Technology Trust Page 3 of 38

General Manager
SRM-Trichy Campus

creation of charge on the Solar Power Plant shall have any effect on this Agreement and shall not affect the business of the Off-taker. Power producer shall have no charge/ claim on the plant after the exercise of plant buyout as Schedule- B by Off-taker.

- D. The Parties by way of this Agreement wish to record the terms and conditions on the basis of which the Power Producer would set up the Solar Power Plant and supply Electricity to the Off-taker.
- E. PPA will be valid from "Effective Date "which is a day on which Solar Energy Corporation of India has accepted the project.

NOW, THEREFORE IN VIEW OF THE FOREGOING PREMISES AND IN CONSIDERATION OF THE MUTUAL COVENANTS AND CONDITIONS SET OUT BELOW, THE PARTIES HEREBY AGREE AS FOLLOWS:

2. DEFINITIONS AND INTERPRETATIONS

2.1. Definitions

In this Agreement, unless the context otherwise requires, Capitalized terms otherwise used shall have the respective meanings assigned to them in Exhibit - II("Definitions").

2.2. Interpretations

- 2.2.1 The table of contents and headings in this Contract are inserted for convenience only and shall not affect its interpretation or construction.
- 2.2.2 All references made in this Agreement to "Clauses", "Exhibits" and "Schedules" shall refer, respectively, to Clauses of and Exhibits and Schedules to this Agreement. The Exhibits and Schedules to this Agreement form part of this Agreement and shall be in full force and effect as though they were expressly set out in the body of this Agreement.
- 2.2.3 Clause headings are for convenience only and shall not affect the interpretation of this Agreement. References to Clauses are specifically made, and where not specifically made, shall mean a reference to the entire Clause of the Agreement along with the numbered clauses or sub-clauses falling under the main clause, which have been appropriately identified by way of numbering and indentations such that an indented clause underneath a main clause shall be construed to be a part of that main clause, if not specifically referred to.
- 2.2.4 The words "hereto", "hereof" and "hereunder" shall refer to this Agreement as a whole and not to any particular provision of this Agreement.
- 2.2.5 The word "person" shall include individuals; partnerships; corporate bodies (including but not limited to corporations, limited partnerships and limited liability companies); non-profit corporations or associations; governmental bodies and agencies; and regulated utilities.
- 2.2.6 The word "including" and "include" shall be deemed to be followed by the words "Without limitations".
- 2.2.7 In the event of any conflict between the text of this Agreement and the contents of any Schedule hereto, the text of this Agreement shall govern.
- 2.2.8 Alternate Power or Grid Power Charges: Per unit Energy Charges for procuring power from the local distribution utility, Tamil Nadu Generation and Distribution Corporation Limited (TANGEDCO).
- 2.2.9 Each of the representations and warranties provided in this Agreement is independent of the other representations and warranties in this Agreement and unless the contrary is expressly stated, no clause in this Agreement limits the extent or application of another clause.
- 2.2.10 Any reference to any statute or statutory provision shall include



- a) all subordinate legislation made from time to time under that statute or provision (whether or not amended, modified, re-enacted or consolidated);
 - b) such provision as from time to time amended, modified, re-enacted or consolidated (whether before, on or after the date of this Agreement) to the extent such amendment, modification, re-enactment or consolidation applies or is capable of applying to any transactions entered into under this Agreement as applicable, and (to the extent liability there under may exist or can arise) shall include any past statutory provision (as from time to time amended, modified, re-enacted or consolidated) which the provision referred to has directly or indirectly replaced.
- 2.2.11 Any grammatical form or variation of a defined term herein shall have the same meaning as that of such term;
- 2.2.12 The words/ expressions used in this Agreement but not defined herein, unless repugnant to the context, shall have the same meaning as assigned to them in the context in which these have been used in the Agreement provided that the respective meanings, if any, assigned to such undefined words/ expressions in the Electricity Act, 2003 shall also be taken into consideration for harmonious interpretation of the Agreement.

3. **TERM**

3.1. Segregation into Periods

This agreement shall consist of an Initial Period and an Operations Period. As used herein, 'Term' shall mean all of the Initial Period and the Operation Period, unless the Power Producer or Off-taker terminates the Agreement earlier in accordance with the terms of this Agreement.

3.2. Initial Period

The Initial Period will begin on the "Effective Date" as set forth above and will terminate on the earlier of the Commercial Operation Date or the date on which the Agreement is terminated pursuant to the provisions of *Clause 4.4* hereof. The Parties agree that the Power Producer shall ensure commissioning of the project within 4 months and 15 days from the date of Effective Date of this agreement ("Scheduled Commissioning Date"). During the initial period, the Off-taker shall take all actions to make the site available to the Power Producer.

3.3. Operations Period

The Operations Period will commence on the Commercial Operation Date and will terminate on the completion of 25 (twenty five) Years from date of Commercial Operation Date.

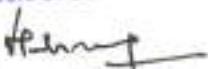
3.4. Lock-in Period

If the Power Producer performs satisfactorily and meets obligations of service and supply as per clause 5.2(b) of this agreement in the first ten years ("Lock-in Period"), then the PPA and the Operation Period would be extended every three years till expiry of 25 years.

If the Power Producer does not perform satisfactorily as per clause 5.2(b) and supply of solar electric energy is interrupted continuously and frequently during the Lock in period for which Power Producer has not paid penalties as per 5.2(b) clause, then the Off taker will have the option to terminate the PPA after giving three months prior notice to the Power producer. More over the off taker will have the other option to go for Buy-out scheme during the Lock in period after the expiry of five years, taking into consideration of the Book value as certified by the practicing Chartered Accountant appointed either by Power producer or off taker as the case may be. The necessary supporting financial data are to be supplied by the power producer to the off taker to arrive at the book value of the Solar Power PV System.



For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus

3.4. Access Specifications

3.4.1. The Off-taker hereby grants the Power Producer and its agents, (including its contractors, subcontractors, persons responsible for implementing the Applicable Solar Plant, and the Financing Party) entry permission into the Premises, for the Term of this Agreement, at reasonable times and upon reasonable notice, for the purposes of designing, installing, inspecting, operating, maintaining, repairing and removing the Plant, and any other purpose set forth in this Agreement, and otherwise in accordance with the provisions of this Agreement.

3.4.2. Permission to work at Site of the Off-taker:

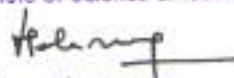
- a) **Vehicular & Pedestrian Entry Permissions:** Off-taker shall provide permission to enter for site vehicles and workers for the purpose of designing, installing, operating, maintaining, repairing and removing the Plant. In exercising such access, the Power Producer shall reasonably attempt to minimize any disruption to activities occurring on the Site.
- b) **Transmission Lines & Communication Cables:** The right to locate transmission lines and communications cables across the Site. The location of any such transmission lines and communications cables outside the areas designated on Exhibit - I shall be subject to the Off-taker's approval and shall be at locations that minimize any disruption to Off-taker's activities occurring on the Site.
- c) **Storage:** Adequate storage space on the Site convenient to the Premises for materials and tools used during construction, installation, and maintenance of the Plant. Power Producer shall be responsible for providing shelter and security for stored items during construction and installation.
- d) **Utilities:** Water, drainage and electrical connection in the Premises as used by Power Producer in installing, operating and maintaining the Plant will be provided by off taker. Further, if the Off-taker wishes to access the plant generation data for the purpose of monitoring then Ethernet connections, Display and Data Storage devices in the Premises shall be arranged by the Off-taker at its own expense. Off-taker needs to provide reasonable and adequate water for cleaning of modules.

3.5 Easement Rights, Permissions, Approvals and Authorizations

- 3.5.1 Immediately upon the commencement of the Initial Period, the Off-taker shall provide entry permissions to Power Producer to execute scope of work as defined in this agreement.
- 3.5.2 The Off-taker will insulate Power Producer from risk arising from authorities appointed under all applicable laws in relation to usage of land such as, but not limited to, the Municipal Authorities, authorities responsible for urban development and regulation, Fire Safety authorities, etc. requisite permissions and approvals relating to the existing building, factory inspectors, lenders, etc. for the purposes of setting up of the Plant.
- 3.5.3 The Off-taker shall provide the relevant support for the follow-up as and when required by the Power Producer for obtaining the necessary permits/approvals from the relevant authorities except financial support.
- 3.5.4 Notwithstanding the generality of the above provision of this clause, the sole responsibility



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and obligation to get all permissions, licenses, and authorizations, including appropriate permits for usage of roof for setting up solar power plant shall at all times vest with the Power Producer.

- 3.5.5 Power producer shall be responsible for obtaining and maintaining all approvals & licenses relating to installation and operation of solar power plant, all the statutory charges for above approvals will be paid by Power Producer. The Off-taker will assist in completing documentation where necessary for obtaining quick approvals.

4. PLANNING, INSTALLATION AND OPERATION OF PLANT

4.1. Site Assessment and Planning :

During the Initial Period, Power Producer shall have the right, at its own expense, to assess the suitability of the Premises for the Plant and shall act diligently in conducting such assessment. The assessment shall include the right to inspect the physical condition of the structures on which the Plant will be located; to apply for permits or other governmental authorizations necessary for the construction of the Plant; to arrange interconnections with the Local Electric Utility; or to make any other investigation or determination necessary for the financing, construction, operation or maintenance of the Plant.

4.2. Commencement of Construction:

At any time during the Initial Period, upon at least ten (10) Business Days' notice to the Off-taker, the Power Producer shall have the right to commence installing the Plant on the Premises, complying to all of the Off-taker's safety norms.

4.3. Major Components of the Plant :

During the project execution due to reasons not attributable to Power Producer, if there is a requirement to change the Major components for the benefit of the project same will be notified to Off-taker by the Power Producer. Approval of such modification of design must not be unreasonably withheld by the Off-taker.

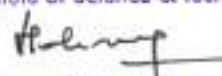
4.4. Termination of Development Activities:

Notwithstanding anything contained in this Agreement at any time during the Initial Period, Power Producer shall have the right to cease development of the Plant on the Premises, for reasons only dealing with changes in basic law or government regulations coming into effect after the Effective Date, which would render the Project unviable. If the Power Producer gives the Off-taker notice of such determination, this Agreement shall stand terminated effective as of the delivery of such notice without any further liability of the Parties to each other, provided that

- 4.4.1. Power Producer shall remove any equipment or materials which the Power Producer has placed on the Site;
- 4.4.2. Power Producer shall try to restore any portions of the Site disturbed by the Power Producer to its pre-existing condition, i.e. prior to the commencement of construction;
- 4.4.3. The Parties shall not be released from any payment or other obligations arising under this Agreement prior to the delivery of the notice; and
- 4.4.4. The confidentiality provisions of Clause 15, the indemnity obligations under Clause 16 hereof, and the dispute resolution provisions of Clause 23 hereof shall continue to apply notwithstanding the termination of this Agreement.
- 4.4.5. Power Producer will reimburse the Off-taker the expenditure incurred in relation to this Solar Power Plant which has been mutually agreed between the Parties.



For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus

4.5. Contractors :

Power Producer shall use contractors / independent agents to perform the work of installing, operating, and maintaining the Plant at its own discretion. In such Appointment of contractors / independent agents, Power Producer ensures to follow Safety, EHS and other norms as per the industry practice and Off-taker's specific norms, provided that appointment of such Contractors shall not relieve the Power Producer from its obligations under this Agreement. The Power Producer should intimate the Off-taker well in advance and take prior approval by providing the names of the employees, list of machineries & equipments which enters the institute premises.

4.6. Site Security:

Off-taker will assist with security for the Plant from the commencement of construction till the time that this Agreement is in effect, to the extent of its existing security procedures, practices, and policies that apply to the Premises. Off-taker will advise Power Producer immediately upon observing any damage to the Plant. During the Operations Period, upon request by Power Producer, such as Power Producer receiving data indicating irregularities or interruptions in the operation of the Plant, Off-taker shall, as quickly as reasonably possible, send a person to observe the condition of the Plant and report back to Power Producer on such observations. The Power Producer is responsible for their own Solar PV System erected in the premises.

4.7. Safety codes :

The Power Producer should ensure that all workers working at plant will wear IS approved safety gear as may be required such as Safety Shoes, Safety helmets, and any other safety gear require to perform safe installation and shall take care of all required measures to ensure safety measures to all workers.

- 4.8. The power supplied would be injected at 415V, 50Hz, into the LT Panel. Suitable provisions will be setup by Power Producer to maintain the quality of power as per the provisions of the Indian electricity codes. Off-taker have to ensure the load and grid availability at operation time of solar power plant.

5. **SALE OF ELECTRIC ENERGY**

5.1. Sale of Electricity:

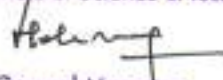
Throughout the Operations Period, subject to the terms and conditions of this Agreement, Power Producer shall sell only to Off-taker and Off-taker shall buy from Power Producer all electric energy produced by the Plant limited to plant capacity i.e. 1,000KWp (+/-20%), whether or not Off-taker is able to use all such electric energy. Title to and risk of loss with respect to the energy shall transfer from Power Producer to Off-taker at the Point of Delivery.

5.2. Expected Energy Supply:

- a. Power Producer estimates the amount of electric energy to be produced by the limits on Plant on annual basis subject to Global Horizontal Irradiation ("GHI") based on following broad assumptions
 - i. Expected Energy Generation / Annum= 15 Lakhs kWh for 1st Year, please refer to Schedule - C for Expected Yearly Energy Production.
 - ii. Module Degradation Factor = 0.67%
 - iii. Global Horizontal Irradiation (GHI) = 1,958.1 kWh/m²



For SRM Institute of Science & Technology


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- b. Power Producer shall ensure that Ninety Two Percent of the Expected Energy Generation (as outlined in Schedule - C) including Deemed Generation (as outlined in Schedule - D) is supplied on annual basis. However, if there is any reduction in generation due to reasons attributable to Off-taker or due to actual GHI, the same should be reduced from the Expected Energy Generation. In case of supply lower than of the ensured electricity, then the Power Producer should compensate to the Off-taker for the difference in Variable Charge of grid power and PPA tariff for shortfall in solar energy for that year.

Explicit understanding of 5.1 and 5.2 clause has been indicated in Schedule - C and Schedule - D.

5.3. Joint Meter Reading:

a. Monthly Meter Reading:

For every calendar month, joint meter reading of main meter and the Check meters installed at the respective locations shall be conducted on 27th (or if holiday then next working day) of every calendar month @ 11:00 AM, in the presence of representatives of both the parties. If the 27th day of the month is a public holiday or Sunday, then in such cases the joint meter reading shall be conducted on the immediate next day. However, in such cases, Power Producer shall inform the other party in advance. The format for monthly joint meter reading is attached. Meter reading can also be taken through the remote monitoring provision provided remote monitoring facility is functional and is capable of reading the energy meter readings.

b. Meter Inspection & Sealing:

The energy meter shall be jointly inspected and sealed by Power Producer and shall not be opened, calibrated or tested except in the presence of the representatives of both the parties. In each case, seal details of old and new seals installed at the meter box to be mentioned on the joint meter reading format or meter testing report. Energy Recording:

i. Difference in energy measurement between main meter and check meters:

At the time of taking monthly joint meter reading, if the electrical energy consumption reading of the main meter differs from the readings of the corresponding check meter by more than +/- 5%, in such case the main meter shall be tested first as per ISI guidelines and if on such testing, the main meter error is found to exceed specific limits prescribed in the standards, then the main meter shall be re-calibrated or replaced by correct meter, within next 7 working days from the date of testing. If the main meter is found correct, the check meter shall be tested and re-calibrated or replaced by correct meter, within next 7 working days from the date of testing. The charges for the meter testing/calibration shall be borne by Power Producer.

ii. Billing in case of faulty meter:

In the event of variation exceeding the permissible limits, the billing should be done based on the correct meter (main or check). The joint metering should be taken after such re-calibration/testing.

c. Annual Meter Testing:

All meters shall be checked /tested for accuracy on a yearly basis in presence of both the parties and shall be tested as working satisfactory so long as the errors are within the limits prescribed for meters of the specific class. Energy consumption recorded in the main meter will form the basis of billing, so long as the yearly checks show that errors if any are within the permissible limits. If the check or main meter is found defective during the annual checking, the error will be rectified and it shall be immediately replaced at the cost of Power Producer.



d. Calibration Procedure:

All meters shall be calibrated on an annual basis by a government approved agency and the cost for the calibration shall be borne by Power Producer. Meter readings shall be taken after the completion of calibration procedure in the presence of authorized representatives of both the parties. Metering system, calibration procedure and the procedure of taking meter readings could be modified from time to time as may be decided by both the parties with mutual understanding.

- i. The Main Metering System at the Delivery Point shall in terms of its technical standards, description, accuracy, calibration, comply fully with the requirements of the relevant standards under the Applicable Law and shall be regularly tested as per the government regulation. This will consist of main meter and a check meter.
 - ii. The Main Metering System shall be installed, maintained and owned by the Power Producer. It shall be installed at a place accessible to the meter readers of both the Parties. The Off-taker shall have full access to the Main Metering System, and to any data generated thereby.
 - iii. The Off-taker may install an additional meter, at its own cost, to verify the measurements of the Main Metering System.
- c. Power Producer shall install the meter(s) to meet the technical and regulatory requirements stipulated by the Jurisdictional Authorities at the drawl Point.

The risk and title to the Electricity supplied by the Power Producer shall pass to the Off-taker at the Delivery Point

6. DAMAGE

• Damage by Off-taker:

In the event that the Solar Power Plant is damaged by any act, negligence or omission by the Off-taker, or any of its employees, agents, contractors or affiliates based on the valid proof, the Off-taker:

- 6.1.1. Shall be responsible for any cost of repairing or replacing any component of the Solar Power Plant and rectifying the damage.
- 6.1.2. Shall continue to be billed as per Deemed Generation until the Solar Power Plant is restored to full capacity, and the Off-taker shall be responsible for the payment of these bills.

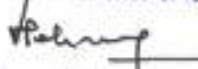
• Damage by Power Producer:

In the event that the Solar Power Plant is damaged by any act, negligence or omission by the Power Producer, or any of its employees, contractors or affiliates, the Power Producer:

- 6.2.1. Shall be responsible for the cost of repairing the Solar Power Plant or replacing the component of the Solar Power Plant
- 6.2.2. Shall not bill the Off-taker for any Deemed Generation. If such Deemed Generation is billed to the Off-taker, the Off-taker shall not be obliged to pay the amount to the power producer.



For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus

7. RATES, BILLING AND PAYMENT SCHEDULE

7.1. Rates:

Off-taker shall pay Power Producer for electricity supplied and Deemed Generation, if any, by the Plant at the rate set forth in *SCHEDULE - A* attached hereto, which shall be exclusive of Statutory Charges that may become applicable during the subsistence of this Agreement.

7.2. Billing:

Off-taker shall pay for the electricity supplied at delivery point, by the Solar Power Plant monthly. Promptly after the end of each calendar month, Power Producer shall provide Off-taker with an invoice setting forth the quantity of electricity produced by the Plant in such month, the applicable rates for such, and the total amount due, which shall be the product of the quantities and the applicable rates. The monthly joint reading format (signed by authorized representatives of Power Producer and Off-taker) will be attached along with the bill otherwise the invoice of the month shall not be accepted by Off-taker. However, if the remote monitoring system is implemented which has the ability of capturing the real-time energy meter readings, the same may be used for billing and physical signing of energy meter records shall not be required.

7.3. Invoice Delivery:

Invoices shall be in writing and shall be either (i) delivered by hand; (ii) mailed by first-class, registered or certified mail, return receipt requested, postage prepaid; (iii) delivered by a recognized overnight or personal delivery service; (iv) transmitted by facsimile/email (such transmission to be effective on the day of receipt if received prior to 5:00 pm local time on a Business Day or in any other case as of the next Business Day following the day of transmittal)

7.4. Payment:

Off-taker shall pay each invoice within fifteen (15) days of receipt of the invoice ("Due Date"). Payments shall be made by electronic funds transfer to an account designated by Power Producer in the invoice or in a written notice delivered to the Off-taker. Any payment after due date would attract an interest @ 1.5%/ month.

7.5. Disputed Invoices:

7.5.1. If Off-taker objects to all or a portion of an invoice, Off-taker shall, on or before the date payment of the invoice is due:

- i. Pay 100% of the undisputed portion of the invoice, and
- ii. Provide an itemized statement of its objections setting forth in reasonable detail the basis for its objections.

7.5.2. If Off-taker does not object prior to the Due Date, Off-taker shall be obligated to pay the full amount of such invoices but Off-taker may subsequently object to such invoice and, if such objection proves to be correct, receive a refund of the disputed amount; PROVIDED, however, that Off-taker may not object to any invoice more than eighteen (18) months after the date on which such invoice is rendered. The right to dispute or object to an invoice, shall, subject to the time limitation provided in this *Clause 7.5.2*, survive the expiration or termination of this Agreement.

7.5.3. Any adjustments shall be made in the invoice of the subsequent months.

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7.5.4. Disputes shall only be entertained on issues pertaining to meter readings and other factual aspects and not on the Tariff for Electricity if the correct Tariff is applied for billing.

7.6. Bank Guarantee / Cheque / Demand Draft:

- i. The Off-taker would provide the Power Producer Rs. 40,00,000/- (Rupees Forty Lakhs only) in the form of Bank Guarantee (B.G.) effective from the date of signing this PPA. The validity of the B.G. would be for a period of either Six (6) months or till the date of commissioning of the project, whichever is earlier.
- ii. The Bank Guarantees will be drawn on a reputed public or private sector Bank approved by the Power Producer.
- iii. Solely based on the Off-taker's reputation, credentials the Power Producer has agreed not to take any Security Deposit in any form from the Off-taker during the post-commissioning/operating period. Hence, the Off-taker would ensure that the monthly payments for the solar power supplied would be done on time.

8. SUPPLEMENTAL POWER

8.1. Interconnection:

Power Producer shall be responsible for arranging the interconnection of the Plant with Off-taker's Local Electric Utility at HT connection level including net metering approvals and fulfilling any other requirements of the distribution licensees.

8.2. Entitlement to Tax Incentives:

Power Producer (and/or its assignee as may be identified and appointed at its sole discretion) shall be entitled to any Tax Incentives that may arise as a result of the operation of the Plant and shall be entitled to transfer the ownership over the Plant or construct the Plant for such Financing Party who is able to utilize such Tax Incentives. Off-taker shall provide reasonable assistance to Power Producer in preparing all documents necessary for Power Producer to receive such Tax Incentives. Any tax incentives arising as a result of solar power generation shall be the right of the Power Producer or the Financing Party and any tax incentives arising due to consumption of solar power shall be the right of the Off-taker.

8.3. Environmental Attributes :

The energy produced at the project may use to offset the RPO obligations of Off-taker as per applicable regulation. If, at any time during the term, the Project is or becomes entitled to receive Carbon Credits or any other similar benefits, the Power Producer shall have such benefits. Any necessary cost associated with claiming the benefits of these environmental attributes shall be borne or reimbursed by the Power Producer.

8.4. No Resale of Electricity:

The electricity purchased by Off-taker from Power Producer under this Agreement shall not be resold, assigned or otherwise transferred to any other person without prior approval of the Power Producer, which approval shall not be unreasonably withheld, and Off-taker shall not take any action which would cause Off-taker or Power Producer to become a utility or public service company.

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9. OWNERSHIP OF PLANT, LIENS, MORTGAGES

9.1. System Ownership:

- 9.1.1. Except as provided in *Clause 10*, the Power Producer or its assignee shall be the legal and beneficial owner of the Plant at all times prior to transfer of the same to the Off-taker. The Plant is a movable property of the Power Producer or the Financing Party or their assignee as the case may be and shall not attach to or be deemed a part of, or fixture to, the Site.
- 9.1.2. Off-taker covenants that it will place all persons having an interest in or lien upon the real property comprising the Premises, on notice of the ownership of the Plant and the legal status or classification of the Plant as movable and personal property of the Power Producer or its assignee as the case may be. Off-taker shall make any necessary filings to disclaim the Plant as a fixture of its respective Premises and Site with the appropriate authorities to place all interested parties on notice of the ownership of the Plant by Power Producer or its assignee as the case may be.

9.2. Liens:

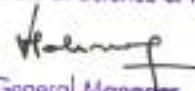
- 9.2.1. To the extent permitted by Applicable Law, each Party shall not directly or indirectly cause, create, incur, assume or suffer to exist any mortgage, pledge, lien, charge, security interest, encumbrance or claim of any nature, including claims by governmental authorities for taxes (collectively referred to as "Liens" and each, individually, a "Lien") on or with respect to the interests of the other in the Site, the Premises, and the Plant, and in the Permission to Enter granted hereunder.
- 9.2.2. Each Party shall promptly notify the other of the imposition of a Lien on the property interests of the other Party, and shall promptly discharge such lien, provided however, that a Party may seek to contest the amount or validity of any Lien affecting the property of the other Party, provided it timely complies with all procedures for contesting such Lien, posts any bond or other security necessary under such procedures, and if such procedures do not require the posting of security, the Party establishes for the benefit of the other Party a deposit, letter of credit, or other security acceptable to the other Party to indemnify the other Party against any Loss which could reasonably be expected to arise if such Lien is not removed or discharged.

9.3. Non-disturbance Agreements:

Off-taker shall pay for and obtain all consents required for it to enter into and perform its obligations under this Agreement from its lenders, landlord, tenants, and any other persons with interests in the Site. If there is any charge against the Premises which could reasonably be construed as prospectively attaching to the Plant, Off-taker shall promptly provide an acknowledgement and consent from such lien holder, in form and substance reasonably acceptable to the Power Producer, stating that the ownership of the property in goods over the Plant remains in the Power Producer and further acknowledging that the Plant is personal property of Power Producer and agreeing not to disturb the rights of Power Producer in the Plant and under this Agreement. Such acknowledgment and consents, or acceptable notices thereof, shall be recorded, at Off-taker's expense, with the appropriate authority. Off-taker may in the future mortgage, pledge, and grant security interests in all or a portion of the Site and the improvements thereon, provided the mortgagee or other grantee of the encumbrance acknowledges this Agreement, the Plant, the access Permissions granted hereunder, and the priority of Power Producer's rights in the Plant and the access Permissions.



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10. PURCHASE OPTIONS, REMOVAL AT END OF TERM

10.1. End of Term Purchase Option:

Off-taker shall have the right to purchase the Plant from Power Producer at the expiration of the Operations Period at the Buy Out Value of the Plant. The Off-taker hereby agrees that it shall be solely liable to bear all taxes as may be applicable for the purchase of the Plant from the Power Producer. The Parties agree that such right under this clause shall be exercised by the Off-taker at least 2 months prior to the termination of this Agreement.

10.2. Transfer of Ownership:

Upon Off-taker's notice that it elects to exercise the option set forth in Clause 10.1, the Off-taker and the Power Producer shall enter into an agreement in mutually agreed terms to transfer the Plant and the rights and obligations attached thereto.

10.3. Operation & Maintenance After Sale:

Upon Off-taker's notice that it elects to exercise the option set forth in Clause 10.1, the Off-taker and the Power Producer shall discuss entering into an operation and maintenance agreement under which Power Producer shall perform all or a portion of the operation and maintenance requirements of the Plant following Off-taker's purchase of the Plant. However, neither Party shall be under an obligation to enter into such an agreement.

10.4. No Survival of Purchase Option:

The options for Off-taker to purchase the Plant under Clause 10.1 shall not survive the termination of this Agreement.

11. SHUTDOWNS, RELOCATION; CLOSURE OR SALE OF SITE

11.1. Off-taker Requested Shutdown:

11.1.1. Off-taker from time to time may request Power Producer to temporarily stop operation of the Plant for a period no longer than cumulative thirty (30) days/annum, such request to be reasonably related to Off-taker's activities in maintaining and improving the Site or to any other urgent activity in the manufacturing setup of the Off-taker.

11.1.2. During any such shutdown period (but not including periods of Force Majeure), Off-taker will pay Power Producer an amount equal to the payments that Off-taker would have made to Power Producer hereunder for electric energy that would have been produced by the Plant during the period of the shutdown;

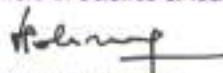
11.1.3. Determination of the amount of energy that would have been produced during the period of the shutdown shall be based on Deemed Generation computed as per Schedule - D of this Agreement.

11.2. Power Producer Shutdown:

Power Producer may shut down the Plant at any time in order to perform required emergency repairs and/or maintenance to the Plant for a maximum of 7 days per annum. Power Producer may shutdown the Plant with intimation to Off-taker. Power Producer agrees to notify Off-taker 24 Hours in advance. However, there will be no reduction in the committed Energy Generation from the Power Producer due to these shutdowns.



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11.3. Plant Relocation:

11.3.1. If the Solar Power Plant needs to be temporarily moved or its generation suspended during site repairs or for any other reason, either at the request of the Off-taker or due to acts of negligence or omission of the Off-taker or its employees, agents or contractors, based on the evidence/proof, the Off-taker will be responsible for any costs arising from moving or disassembling the Solar Power Plant. In the event the plant relocation is requested by the Power Producer for reasons solely attributable to the Power Producer, all costs arising from such moving or disassembling the Solar Power Plant shall be solely to the account of the Power Producer. Suspension of Generation

- a) Any interruption in generation of Electricity during such relocation as described hereinabove in Clause 11.3.1, and reasons attributable to the Off-taker will continue to be billed as per Deemed Generation, during the period of interruption,
- b) Where the Electricity generation is suspended or the Solar Power Plant is to be temporarily moved on account of any act of negligence or omission of the Power Producer or its employees, agents or contractors, the cost for relocation / disassembling shall be to the account of the Power Producer who will further compensate the Off-taker for the above loss based on Clause 5.2 b of this Agreement.

11.3.2. In addition, during the Relocation Event, except in the circumstances envisaged under Clause 11.3.1(b) above:

- a) Off-taker shall pay Power Producer an amount equal to the payments that Off-taker would have made to Power Producer hereunder for electric energy that would have been produced by the Plant following the Relocation Event;
- b) Determination of the amount of energy that would have been produced following the Relocation Event shall be based, during the first Operations Year, on the Deemed Generation and, after the first Operations Year, based on actual operation of the Plant in the same period in the previous Operations Year unless Power Producer and Off-taker mutually agree to an alternative methodology.

11.3.3. Premises Shutdown; Interconnection Deactivated

- a) In the event Premises are closed as a result of an event that is not:
 - (i) a Force Majeure Event or
 - (ii) caused by or related to any unexcused action or inaction of Power Producer,

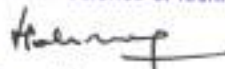
Off-taker shall nevertheless continue to pay Power Producer for all electricity produced by the Plant on the Premises and delivered to the Point of Delivery.

- b) If an interconnection with the Local Electric Utility becomes deactivated for reasons that are not:
 - (i) a Force Majeure Event or
 - (ii) caused by or related to any unexcused action or inaction of Power Producer such that the Plant is no longer able to produce electricity or transfer electricity to its respective Premises or to the Local Electric Utility,

Off-taker will pay Power Producer an amount equal to the sum of payments that Off-taker would have made to Power Producer hereunder for electric energy that would have been produced by the Plant following such closure as per Deemed Generation (Schedule - D)



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- c) Determination of the amount of energy that would have been produced following such closure shall be based, during the first Operations Year, on the estimated levels of production and, after the first Operations Year, based on actual operation of the Plant in the same period in the previous Operations Year unless Power Producer and Off-taker mutually agree to an alternative methodology.
- d) If a shutdown pursuant to this *Clause 11.3.3* continues for 365 days or longer, Power Producer will be entitled to ask for buyout of the plant by Off-taker.

11.4. Sale of Site:

- 11.4.1. The Parties hereby confirm that they are entering into the Agreement in good faith and have no current plans or discussion of plans of ceasing business operations.
- 11.4.2. In the event Off-taker transfers (by sale, lease, or otherwise) all or a portion of its interest in the Site, Off-taker shall remain primarily liable to Power Producer for the performance of the obligations of Off-taker hereunder notwithstanding such transfer.
- 11.4.3. However, if no Off-taker Event of Default has occurred and is continuing and the transferee is acceptable to Power Producer in their sole discretion and executes agreements assuming this Agreement in form and substance satisfactory to Power Producer in their sole discretion, Off-taker may be released from further obligations under this Agreement.
- 11.4.4. In the event that the Off-taker or the transferee wishes to terminate the Agreement, then they shall pay to the Power Producer the applicable Buy-out value on mutual discussion & consent.

12. TAXES :

12.1. Property Taxes:

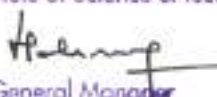
Off-taker shall be responsible for all ad valorem personal property or real property taxes levied against the Site, improvements thereto and personal property located thereon, except that Power Producer shall be responsible for ad valorem personal property or real property taxes levied against the Plant. If Off-taker is assessed any taxes related to the existence of the Plant on the Premises, Off-taker shall immediately notify Power Producer. Off-taker and Power Producer shall cooperate in contesting any such assessment; provided, however, that Off-taker shall pay such taxes to avoid any penalties or interest on such Taxes, subject to reimbursement by Power Producer. If after resolution of the matter, such tax is imposed upon Off-taker related to the improvement of real property by the existence of the Plant on the Site, Power Producer shall reimburse Off-taker for such tax.

12.2. Tax Contests:

Each Party has the right to contest taxes in accordance with Applicable Law and the terms of encumbrances against the Site. Each Party shall use all reasonable efforts to cooperate with the other in any such contests of tax assessments or payments. In no event shall either Party postpone during the pendency of an appeal of a tax assessment the payment of taxes otherwise due except to the extent such postponement in payment has been bonded or otherwise secured in accordance with Applicable Law.



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12.3. Payment of Delinquent Taxes:

In the event either Party fails to pay any taxes that may become a lien upon the other Party's property, such Party may pay such amounts and in such event, shall be entitled to recover such paid amount from the other Party, together with interest thereon at the rate of one percent (1%) per month, compounded monthly.

12.4. Reimbursement Deadline:

Any reimbursement of taxes owing pursuant to this Section 12 shall be paid within twenty (20) Business Days of receiving an invoice there for from the Party who paid the taxes.

13. INSURANCE

13.1. Coverage:

Power Producer will maintain the insurance coverage including its manpower in full force and effect throughout the Term.

14. COOPERATION; SOLAR ACCESS; FUTURE IMPROVEMENTS

14.1. Cooperation:

The Parties acknowledge that the performance of each Party's obligations under this Agreement will frequently require the assistance and cooperation of the other Party. Each Party therefore agrees, in addition to those provisions in this Agreement specifically providing for assistance from one Party to the other, that it will at all times during the Term cooperate with the other Party and provide all reasonable assistance to the other Party to help the other Party perform its obligations hereunder.

14.2. Unrestricted Solar Access

Off-taker, or any lessee, grantee or licensee of Off-taker, shall not erect any structures on, or make other modifications to, or plantings on, the Site which will interfere with the construction, operation or maintenance of, or solar access of, the Plant.

15. CONFIDENTIALITY

15.1. Limits on Disclosure of Confidential Information:

Subject to the exceptions set forth below in Clause 15.2 each Party agrees that:

15.1.1. Without the consent of the other Party, it shall not disclose any Confidential Information received from the other Party to any other person and

15.1.2. It shall use any Confidential Information received from the other Party only for the purpose of fulfilling its obligations under this Agreement.

15.2. Permissible Disclosures:

15.2.1. Notwithstanding the foregoing, the Parties may, and shall, disclose any information required to be disclosed under rules, regulations required to be disclosed by any Governmental Authority under Applicable Law or pursuant to a validly issued summonses or required filing.

15.2.2. Power Producer may provide this Agreement, and any correspondence, notices and other information related to this Agreement to any person who has provided or who is interested in providing construction or permanent financing, or any refinancing thereof, to Power Producer in connection with the Plant. In addition, if a receiving Party is required by Applicable Law to disclose any Confidential Information provided by the disclosing Party, the receiving Party may make disclosure as required by law, but the receiving Party shall prior to making any disclosure notify the disclosing Party of the



requested disclosure and shall use its reasonable efforts to cooperate with the disclosing Party, but at the expense of the disclosing Party, in any efforts by the disclosing Party to minimize the extent of the Confidential Information disclosed and the persons to whom disclosed.

15.3. Enforcement of Confidentiality Provisions:

Each Party acknowledges that it may be impossible to measure the damages which may result from a breach of this Clause 15 and agrees that the provisions of this Clause 15 may be required to be specifically performed and each Party shall have the right to obtain preliminary and permanent injunctive relief to secure specific performance of the terms of this Clause 15. The provisions of this Clause 15 shall survive until one year after the effective date of any termination of this Agreement.

16. INDEMNIFICATION

16.1. Power Producer Indemnification:

16.1.1. Power Producer shall indemnify, defend and hold Off-taker and its directors, officers, employees, agents, volunteers, and invitees ("Off-taker's Indemnified Parties"), harmless from and against all Losses incurred by the Off-taker Indemnified Parties to the extent arising from or out of the following:

- a) any claim for or arising out of any injury to or death of any Person or loss or damage to property to the extent arising out of Power Producer's (or its contractor's) negligence or willful misconduct;
- b) power Producer's violation of Applicable Law;
- c) any failure to properly interconnect or comply with the procedures of the Local Electric Utility; or
- d) any failure to properly handle or dispose of any Hazardous Materials brought onto the Site by Power Producer or by any of Power Producer's employees, agents, volunteers, and invitees.

16.1.2. Such duty to indemnify with respect to any injuries to persons or damage to property arising from the generation of electricity from the Plant shall not extend to incidents occurring on Off-taker's side of the Point of Delivery except to the extent caused by incidents on Power Producer's side of the Point of Delivery.

16.1.3. Such duty to indemnify shall not apply to any action or claim, whether in tort (including negligence and strict liability), contract or otherwise for any loss, injury, or costs resulting from interruptions in service. Power Producer shall not be obligated to indemnify Off-taker or any Off-taker Indemnified Party for any Loss to the extent such Loss is due to the negligence or willful misconduct of Off-taker or any Off-taker Indemnified Party.

16.2. Off-taker Indemnification:

16.2.1 Off-taker shall indemnify, defend and hold Power Producer, its contractors, subcontractors, shareholders, directors, officers, employees, agents, and invitees, ("Power Producer's Indemnified Parties"), harmless from and against all Losses incurred by the Power Producer's Indemnified Parties to the extent arising from or out of any of the following:

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- a. any claim for or injury to or death of any Person or loss or damage to property to the extent arising out of the negligence or willful misconduct of any of Off-taker's Indemnified Parties;
- b. Off-taker's violation of Applicable Law; or
- c. the presence, removal or remediation of any Hazardous Materials on the Site (other than any Hazardous Materials brought on to the Site by Power Producer's Indemnified Parties).

16.2.2 Off-taker shall not be obligated to indemnify Power Producer or any Power Producer Indemnified Parties for any Loss to the extent such Loss is due to the negligence or willful misconduct of Power Producer or any Power Producer Indemnified Party.

16.3. Survival of Indemnification:

The obligations of indemnification as specified above shall survive termination of this Agreement.

17. REPRESENTATIONS AND WARRANTIES

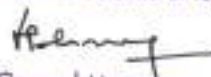
17.1. Mutual Representations:

17.1.1. Each Party hereby represents and warrants to the other, as of date hereof, that:

- a) Organization. It is duly organized, incorporated, and in good standing with limited liability and validly existing under the laws of India, of its state of incorporation and of the state in which the Premises are located, respectively, and has the power and authority to enter into, execute and deliver this Agreement and to perform its obligations hereunder.
- b) No Conflict. The execution and delivery of this Agreement and the performance of and compliance with the provisions of this Agreement will not conflict with or constitute a breach of or a default under
 - (i) its organizational documents;
 - (ii) any agreement or other obligation by which it is bound;
 - (iii) any law or regulation.
- c) Enforceability.
 - (i) all actions required to be taken by or on the part of such Party necessary to make this Agreement effective have been duly and validly taken;
 - (ii) this Agreement has been duly and validly authorized, executed and delivered on behalf of such Party; and
 - (iii) this Agreement constitutes a legal, valid and binding obligation of such Party, enforceable in accordance with its terms, subject to laws of bankruptcy, insolvency, reorganization, moratorium or other similar laws.
- d) No Material Litigation. There are no court orders, actions, suits or proceedings at law or in equity by or before any governmental authority, arbitral tribunal or other body, or threatened against or affecting it or brought or asserted by it in any court or before any arbitrator of any kind or before or by any governmental authority that could reasonably be expected to have a material adverse effect on it or its ability to perform its obligations under this Agreement, or the validity or enforceability of this Agreement.
- e) That they perform their obligations hereunder in accordance with all applicable anti-corruption laws and regulations.



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17.2. Off-taker Representations:

In addition to the representations and warranties in *Clause 17.1* above, Off-taker hereby represents and warrants to Power Producer, as of date hereof, that:

- 17.2.1. Electric Usage. Off-taker has provided to Power Producer complete and correct records of its electric usage at the Site for the preceding two years.
- 17.2.2. Condition of Premises. Off-taker has provided to Power Producer Off-taker's complete and correct records of the physical condition of the Premises and the Power Producer has conducted a site visit. If it is discovered that the actual site conditions on part of, or on the entire Premises upon which all or part of the Plant is to be installed, are materially different from the information presented by Off-taker, then if practicable the rates payable by Off-taker hereunder shall be adjusted to compensate Power Producer for the cost of design and construction changes and delays incurred to adapt the Plant to the unknown conditions. If such adjustment is not practicable, Power Producer shall have other rights under this Agreement. Off-taker further agrees not to undertake any sort of construction activity on the Premises during the subsistence of this Agreement. Any such construction activity on the part of the Off-taker would require a prior written approval from the Power Producer. The Power Producer shall have a right to terminate this Agreement in case of any construction activity undertaken by the Off-taker on the Plant Premises, which disturbs the operation of the Solar Power Plant, prior to seeking a written approval and shall be liable to pay the Buy Out as per the terms of this Agreement.
- 17.2.3. Financial Information: The financial statements Off-taker has provided to Power Producer present fairly in all material respects the financial condition and results of operations of Off-taker.

18. **FORCE MAJEURE**

18.1. Excuse of Force Majeure Event:

Except as provided in *Clause 18.2* or otherwise specifically provided in this Agreement, neither Party shall be considered in breach of this Agreement or liable for any delay or failure to comply with this Agreement, if and to the extent that such delay or failure is attributable to the occurrence of a Force Majeure Event; provided that the Party claiming relief as a result of the Force Majeure Event shall promptly

- 18.1.1. notify the other Party in writing of the existence and details of the Force Majeure Event, within seven (7) days of its knowledge of commencement of such event. In case of total disruption of communication, the same must be communicated as soon as practicable after the occurrence of Force Majeure;
- 18.1.2. exercise all reasonable efforts to minimize delay caused by such Force Majeure Event and mitigate the effect of such event as soon as possible;
- 18.1.3. notify the other Party in writing of the cessation of such Force Majeure Event; and
- 18.1.4. resume performance of its obligations hereunder as soon as practicable from the date of cessation of the Force Majeure event or its consequences.

18.2. No Excuse for Payment for Prior Services:

Obligations to make payments for services already provided shall not be excused by a Force Majeure Event.

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18.3. Termination for Force Majeure Event:

18.3.1. Notwithstanding anything to the contrary in this *Clause 18*, if nonperformance on account of a Force Majeure Event continues beyond a continuous period of three hundred and sixty-five (365) days, then the Party not claiming Force Majeure shall have the right to terminate this Agreement upon thirty (30) days' notice to the other.

18.3.2. In the event of such a termination of this Agreement with respect to the Plant, the Parties shall not be released from any payment or other obligation arising under this Agreement which accrued prior to the shutdown of the Plant or the Premises, and the Indemnity, Confidentiality and Dispute Resolution provisions of this Agreement shall survive the termination of this Agreement.

19. POWER PRODUCER DEFAULT AND OFF-TAKER REMEDIES

19.1. Power Producer Default and Off-taker Remedies:

Power Producer shall be in default of this Agreement if any of the following ("Power Producer Events of Default") shall occur:

19.1.1. **Misrepresentation:** Any representation or warranty by Power Producer under Section 16 hereof, is incorrect or incomplete in any material way, or omits to include any information necessary to make such representation or warranty not materially misleading, and such defect is not cured within fifteen (15) days after receipt of notice from Off-taker identifying the defect.

19.1.2. **Abandonment during Construction and Installation:** After commencement of construction of the Plant, Power Producer abandons construction or installation of the Plant for thirty (30) days and fails to resume construction or installation within thirty (30) days after receipt of notice from Off-taker stating that, in Off-taker's reasonable determination, Power Producer has abandoned construction and installation of the Plant;

19.1.3. **Failure to Operate:** After the Commercial Operation Date, Power Producer fails to operate the Plant for a period of 90 days which failure is not due to equipment failure, or damage to the Plant, act of governmental authority, or exercise of Power Producer's rights under this Agreement, or otherwise excused by the provisions of *Clause 18.1* (relating to Force Majeure Events); and Power Producer fails to resume operation within thirty (30) days after receipt of notice from Off-taker stating that, in Off-taker's reasonable determination, Power Producer has ceased operation of the Plant, provided, however, that the cure period shall be extended by the number of calendar days during which Power Producer is prevented from taking curative action if Power Producer had begun curative action and was proceeding diligently, using commercially reasonable efforts, to complete such curative action.

19.1.4. **Obligation Failure.** Power Producer fails to perform any obligation hereunder, such failure is material, such failure is not excused by the provisions of *Clause 18.1* (relating to Force Majeure Events), and such failure is not cured within: (A) ten (10) days if the failure involves a failure to make payment when due or maintain required insurance; or (B) sixty (60) days if the failure involves an obligation other than payment or the maintenance of insurance, after receipt of notice from Off-taker identifying the failure

19.1.5. **Insolvency.** Power Producer (A) applies for or consents to the appointment, or the taking of possession by, a receiver, custodian, trustee or liquidator of itself or a substantial portion of its property; (B) admits in writing its inability, or is generally unable, to pay its debts as such debts become due; (C) makes a general assignment for the benefit of its



creditors; (D) commences a voluntary case under any bankruptcy law; (E) files a petition seeking to take advantage of any other law relating to bankruptcy, insolvency, reorganization, winding up, or composition or readjustment of debts; (F) acquiesces in, or fails to contest in a timely manner, any petition filed against Power Producer in an involuntary case under bankruptcy law or seeking to dissolve Power Producer under other Applicable Law; or (G) takes any action authorizing its dissolution.

19.2. Off-taker Remedies:

Upon an Event of Default by Power Producer, provided that Off-taker complies with its obligations under Clause 21 and Power producer or its Assignee (Financing Party) does not cure such Event of Default by Power Producer, Off-taker may terminate this Agreement without buyout or any other additional payments.

20. OFF-TAKER DEFAULT AND POWER PRODUCER REMEDIES

20.1. The occurrence and continuation of any of the following events, unless any such event occurs as a result of a Force Majeure event, shall constitute an Off-taker's Event of Default ("Off-taker Event of Default")

20.1.1. Bankruptcy, liquidation or dissolution of the Off-taker pursuant to Applicable Law, except for the purpose of a merger, consolidation or re-organization that does not affect the ability of the resulting entity to perform all its obligations under this Agreement and provided that such resulting entity expressly assumes all such obligations

20.1.2. Default in payment of undisputed invoices for a continuous period of three (3) months within a period of six months

20.1.3. Failure to perform its obligations under this Agreement

20.1.4. Abandonment of this Agreement by way of failure to pay under the terms of this Agreement: In case the Off-taker fails to make payments under this Agreement for a continuous period of 12 months, then the Power Producer shall be at liberty to consider this Agreement as having been terminated on account of Off-taker's Event of Default. In the event of termination on account of non-payment by the Off-taker as aforesaid, the Off-taker shall be liable to pay, immediately and without demur, the Buy Out value as stated in Schedule B to the Power Producer. The payment of Buy Out value due shall be without prejudice to the rights of the Power Producer to encash the Bank Guarantee (if anything given) towards outstanding dues and payments towards the dues under this Agreement.

20.2. Default Damages:

Upon an Event of Default by Off-taker, it shall pay to Power Producer the amount equivalent to the sum of Buy Out value.

21. COLLATERAL ASSIGNMENT, FINANCING PROVISIONS

21.1. Financing Arrangements:

Power Producer may mortgage, pledge, grant security interests, assign, or otherwise encumber its interests in this Agreement to any persons providing financing for the Plant. Off-taker acknowledges that Power Producer will obtain construction financing for the Plant from third party and that Power Producer may either obtain term financing secured by the Plant or sell or assign the Plant to a Financing Party or may arrange other financing accommodations from one or

more financial institutions and may from time to time refinance, or exercise purchase options under such transactions. Off-taker acknowledges that in connection with such transactions Power Producer may secure Power Producer's obligations by, among other collateral, an assignment of this Agreement and a first security interest in the Plant as well as the right to supply electricity to the Off-taker under the terms of an agreement containing provisions similar to this Agreement in relation to "RATES, BILLING AND PAYMENT SCHEDULE". Power Producer agrees to serve prior notice to Off-taker before any material change in financing arrangements and such changes will not bring any financial obligations to the Off-taker. In order to facilitate such necessary sale, conveyance, or financing, assignment with respect to any Financing Party, as applicable, Off-taker agrees as follows:

21.1.1. Consent to Assignment :

Off-taker hereby consents to both of the sale of the Plant to a Financing Party and the collateral assignment to the Financing Party of the Power Producer's right, title and interest in and to this Agreement either in full or in part.

21.1.2. Rights of Financing Party:

Notwithstanding any contrary term of this Agreement, the Financing Party shall have following rights during the term of this Contract:

(a) Step-In Rights:

The Financing Party, as owner of the Plant, or as collateral assignee of this Agreement, shall be entitled to exercise, in the place and stead of Power Producer, any and all rights and remedies of Power Producer under this Agreement in accordance with the terms of this Agreement. The Financing Party shall also be entitled to exercise all rights and remedies of owners or secured parties, respectively, generally with respect to this Agreement and the Plant; For the avoidance of doubt, it is agreed that the Power Producer and the Financing Party shall endeavor to appoint a new operation and maintenance agent with proven credentials and at least 20 MW under management. If such agent is identified, the Off-taker shall not unreasonably withhold such approval.

(b) Opportunity to Cure Default:

The Financing Party shall have the right, but not the obligation, to pay all sums due under this Agreement and to perform any other act, duty or obligation required of Power Producer there under or cause to be cured any default of Power Producer there under in the time and manner provided by the terms of this Agreement. Nothing herein requires the Financing Party to cure any default of Power Producer under this Agreement or (unless the Financing Party has succeeded to Power Producer's interests under this Agreement) to perform any act, duty or obligation of Power Producer under this Agreement, but Off-taker hereby gives it the option to do so;

(c) Exercise of Remedies:

Upon the exercise of remedies, including any sale of the Plant by the Financing Party, whether by judicial proceeding or under any power of sale contained herein, or any conveyance from Power Producer to the Financing Party (or any assignee of the Financing Party as defined below) in lieu thereof, the Financing Party shall give notice to Off-taker of the transferee or assignee of this Agreement. Any such exercise of remedies shall not constitute a default under this Agreement;

(d) Cure of Bankruptcy Rejection:

Upon any rejection or other termination of this Agreement pursuant to any process undertaken with respect to Power Producer under the Bankruptcy laws of India including the Securitization and Reconstruction of Financial Assets and



Enforcement of Security Interest Act, 2002 at the request of Financing Party made within ninety (90) days of such termination or rejection, Off-taker shall enter into a new agreement with Financing Party or its assignee having substantially the same terms and conditions as this Agreement.

i) Right to Cure

A. Cure Period:

Off-taker will not exercise any right to terminate or suspend this Agreement unless it shall have given the Financing Party prior written notice of its intent to terminate or suspend this Agreement, as required by this Agreement, specifying the condition giving rise to such right, and the Financing Party shall not have caused to be cured the condition giving rise to the right of termination or suspension within thirty (30) days after such notice or (if longer) the periods provided for in this Agreement; provided that if such Power Producer default reasonably cannot be cured by the Financing Party within such period and the Financing Party commences and continuously pursues cure of such default within such period, such period for cure will be extended for a reasonable period of time under the circumstances, such period not to exceed additional ninety (90) days. The Parties' respective obligations will otherwise remain in effect during any cure period.

B. Continuation of Agreement:

If the Financing Party or its assignee (including any purchaser or transferee), pursuant to an exercise of remedies by the Financing Party, shall acquire title to or control of Power Producer's assets and shall, within the time periods described in *Clause 21.1.2(d)(i)* above, cure all defaults under this Agreement existing as of the date of such change in title or control in the manner required by this Agreement and which are capable of cure by a third person or entity, then such Person shall no longer be in default under this Agreement, and this Agreement shall continue in full force and effect.

22. LIMITATIONS OF DAMAGES

Except as explicitly provided in this Agreement, neither party nor any of its indemnified persons shall be liable to the other party or its indemnified persons for any special, punitive, exemplary, indirect, or consequential damages, arising out of or in connection with this agreement.

23. DISPUTE RESOLUTION

23.1. Resolution through mutual discussions:

If any dispute or difference of any kind whatsoever shall arise between the Parties in connection with or arising out of this Agreement or out of the breach, termination or invalidity of the Agreement hereof, the Parties shall attempt to resolve through mutual discussions within fifteen (15) days in the site.



23.2. Continuance of Performance:

Notwithstanding the existence of any Dispute except for non-payment without justification, the Parties hereto shall continue to perform their respective obligations under this Agreement throughout the Term of this Agreement.

23.3. Negotiation Period:

The Parties shall negotiate in good faith and attempt to resolve any dispute, controversy or claim arising out of or relating to this Agreement ("Dispute") within 30 days after the date that a Party gives written notice of such Dispute to the other Party.

23.4. Mediation:

If, after such negotiation in accordance with Clause 23.3, the Dispute remains unresolved, either Party may require that a non-binding mediation take place. In such mediation, representatives of the Parties with authority to resolve the dispute shall meet for at least three hours with a mediator whom they choose together. If the Parties are unable to agree on a mediator, then either Party is hereby empowered to request the appropriate Courts at Tiruchirappalli to appoint a mediator. The mediator's fee or expenses shall be paid one-half by each Party.

23.5. Arbitration of Disputes:

23.5.1. Disputes that remain unresolved after mediation will be resolved through binding arbitration. All such disputes that have not been satisfactorily resolved under Clause 23.4 above shall be referred to arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996. Irrespective of the Arbitration/dispute resolution proceedings, the Parties shall continue to perform their respective obligations under this Agreement, during the Term of the Agreement, except for non-payment without justification and / or unless the nature of the dispute is such that a Party is unable to perform its obligations without the resolution of the Dispute under the Arbitration/other proceedings.

23.5.2. The arbitral tribunal shall consist of a Sole Arbitrator to be appointed upon mutual consent of the Parties. If no agreement could be reached on the appointment of the Sole Arbitrator within a reasonable period (say one month of submitting the proposal), then the Parties shall resort to the remedy provided for in the Arbitration & Conciliation Act, 1996. The Arbitrators appointed to resolve the dispute shall have relevant expertise in the power sector.

23.5.3. The place of the arbitration shall be Tiruchirappalli and the language of the arbitration shall be English. Each Party shall bear its respective legal and arbitration costs.

23.5.4. The award of the arbitral tribunal shall be final and binding on the Parties and shall be enforceable in accordance with its terms. The arbitral tribunal shall state reasons for its findings and the award shall be substantiated in writing. The Parties agree to be bound by the decision thereby and to act accordingly.

23.5.5. The Parties agree that either Party may seek interim measures including injunctive relief in relation to the provisions of this Agreement or the Parties' performance of it from any court of competent common jurisdiction at Tiruchirappalli.

23.5.6. The Parties expressly waive and forego any right to punitive, exemplary, or similar damages in connection with any Dispute and no such damages shall be awarded or provided for in any Dispute resolution proceeding under or in aid of this Article.



23.6. Survival of Arbitration Provisions:

The provisions of this Clause 23 shall survive any termination of this Agreement for any reason whatsoever and shall apply (except as provided herein) to any disputes arising out of this Agreement.

24. NOTICES

24.1. Delivery of Notices

All notices or other communications which may be or are required to be given by any party to any other party pursuant to this Agreement shall be in writing and shall be either:

24.1.1. delivered by hand;

24.1.2. mailed by registered post, return receipt requested, postage prepaid;

24.1.3. delivered by a recognized overnight or personal delivery service;

24.1.4. transmitted by facsimile (such transmission to be effective on the day of receipt if received prior to 5:00 pm local time on a business day or in any other case as of the next business day following the day of transmittal); or

24.1.5. transmitted by email if receipt of such transmission by email is specifically acknowledged by the recipient (automatic responses not being sufficient for acknowledgement), addressed as follows:

If to Off-taker:

SRM Institute of Science & Technology Trust,
Irungalur,
Trichy - Chennai National Highway (NH) - 45,
Manachanallur (Taluk),
Tiruchirappalli (District),
Tamil Nadu, India.
621 105.

If to Power Producer:

Renew Solar Energy Pvt. Ltd.,
10th Floor, DLF Square, M Block,
Jacaranda Marg, DLF City Phase - II,
Gurgaon - 122002,
Haryana.

Attention : Mr. Prabhat Mishra
E.mail : prabhat@renewpower.in

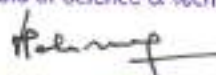
24.2. Effectiveness of notices

24.2.1. Notices shall be effective when delivered (or in the case of email, when acknowledged by the recipient) in accordance with the foregoing provisions, whether or not (except in the case of email transmission) accepted by, or on behalf of, the Party to whom the notice is sent.

24.2.2. Each Party may designate by Notice in accordance with this section to the other Party a new address to which any notice may thereafter be given.



For SRM Institute of Science & Technology Page 26 of 38


General Manager
SRM-Trichy Campus

25. MISCELLANEOUS

25.1. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of India, including principles of good faith and fair dealing that will apply to all dealings under this Agreement.

25.2. Jurisdiction

Subject to the provisions of *Clause 23.5.3*, the courts of Tiruchirappalli shall have exclusive jurisdiction in relation to all matters arising out of this Agreement.

25.3. Severability

If any non-material part of this Agreement is held to be unenforceable, the rest of the Agreement will continue in effect. If a material provision is determined to be unenforceable and the Party which would have been benefited by the provision does not waive its unenforceability, then the Parties shall negotiate in good faith to amend the Agreement to restore to the Party that was the beneficiary of such unenforceable provision the benefits of such provision. If the Parties are unable to agree upon an amendment that restores the Party's benefits, the matter shall be resolved under *Clause 23.5* in order to restore to the Party that was the beneficiary of the unenforceable provision the economic benefits of such provision.

25.4. Amendment and Waiver:

25.4.1. This Agreement may only be amended by a writing signed and duly executed by an authorized representative of both Parties. Any waiver of any of the terms hereof shall be enforceable only to the extent it is waived in a writing signed by the Party against whom the waiver is sought to be enforced.

25.4.2. Any waiver shall be effective only for the particular event for which it is issued and shall not constitute a waiver of a subsequent occurrence of the waived event nor constitute a waiver of any other provision hereof, at the same time or subsequently.

25.5. Assignment:

Neither Party may assign, sell, transfer or in any other way convey its rights, duties or obligations under this Agreement, either in whole or in part, without the prior written consent of the other Party unless it is permitted as per the provisions of this Agreement. Consent shall not be unreasonably withheld or delayed.

25.6. Agency:

Unless specifically prohibited, the Parties shall be free to employ agents to perform their obligations under this Agreement, so long as the Parties remain primarily liable for the due performance of this Agreement.

25.7. No Joint Venture:

This Agreement does not create a joint venture, partnership or other form of business association between the Parties.



25.8. Entire Agreement

This Agreement, together with any documents referred to in it, supersedes any and all oral and written agreements' drafts, undertakings, representations, warranties and understandings heretofore made relating to the subject matter hereof and constitutes the entire agreement and understanding of the Parties relating to the subject matter hereof.

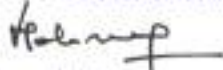
25.9. Counterparts:

This Agreement may be executed in two counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Delivery of signature by fax, or scan delivered by email, receipt acknowledged, or electronic signature are effective to bind a Party hereto.

26.10 Erection, Commissioning and Operation: The Power Producer will bear all costs towards staying arrangement, conveyance or any other expenses of executive, consultant, labor or any other associates, vendors or sub-contractors of the Power Producers during the installation, commissioning and operation period.



For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus

IN WITNESS WHEREOF, intending to be legally bound hereby, Power Producer and Off-taker have executed this Power Purchase Agreement as of the date first set forth above.

For and on behalf of the

RENEW SOLAR ENERGY PVT LTD



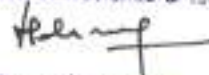
Authorised Signatory

PANKAJ VERMA

For and on behalf of the

SRM INSTITUTE OF SCIENCE & TECHNOLOGY TRUST

For SRM Institute of Science & Technology Trust



General Manager
SRM-Trichy Campus

Authorised Signatory

MAHENDERAN V. R.

Witness:

1. Mr. B. Karthik Kumar,
S/o. V. Balasubramanian,
SRM Institute of Science & Technology Trust,
Irungalur, Trichy - Chennai National Highway (NH) - 45,
Manachanallur (Taluk),
Tiruchirappalli (District),
Tamil Nadu, India.
621 105.

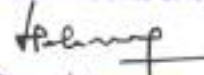
B. Karthik Kumar

2. Mr. Balagurunathan Seetharaman,
Associate Vice-president,
8minutes Future Energy Private Limited,
Mobile : 9940440411.
Email : bala@8minutes.com

3. Mr. K. Padmanathan,
S/o. Mr. K. Kasinathan,
No: 17-1B, Cee Dee Yes Apartments,
Chennai Pattinam, Ammapettai (Post),
Thiruporur (Taluk),
Kancheepuram (District),
Tamil Nadu, India.
603 108.

ce. Padmanathan

For SRM Institute of Science & Technology



General Manager
SRM-Trichy Campus

EXHIBITS

Exhibit - I: DESCRIPTION OF THE PREMISES AND SITE

Site Specifics	
Name of the Site	1. Chennai Medical College Hospital & Research Centre (CMCHRC) 2. TRP Engineering College
Locality	Irungalur, Trichy - Chennai National Highway (NH) - 45, Manachanallur (Taluk), Tiruchirappalli (District), Tamil Nadu, India. 621 105. Geographical Coordinates: 10.954734 North, 78.754879 East
State	Tamil Nadu



For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus

Exhibit-II: DEFINITIONS

- 1) "Access Rights" means the rights provided in this Agreement for Power Producer and its designees, including Installer, to enter upon and cross the Site to install, operate, maintain, repair and remove the Project, and to interconnect the Project with the Local Electric Utility and to provide water, electric and other services to the Project.
- 2) "Act" means the Electricity Act, 2003 and the rules and regulations made there under from time to time along with amendments thereto and replacements thereof and any other Applicable Law related to electricity.
- 3) "Affected Party" shall mean a Party whose performance has been affected by an event of Force Majeure.
- 4) "Affiliate" means, as to any Person, any other Person which, directly or indirectly, is in control of, is controlled by, or is under common control with, such Person. For purposes of this definition, "control" of a Person means the power, directly or indirectly, to direct or cause the direction of the management and policies of such Person whether by contract or otherwise.
- 5) "Agreement" means this Power Purchase Agreement, including all its recitals and Schedules attached hereto, as the same may be amended from time to time in accordance with the provisions hereof.
- 6) "Applicable Law" means any constitutional provision, law, statute, rule, regulation, ordinance, treaty, order, decree, judgment, decision, certificate, holding, injunction, registration, license, franchise, permit, authorization, or guideline issued by a Governmental Authority that is applicable to a Party to this Agreement or the transaction described herein. Applicable Law also includes an approval, consent or requirement of any Governmental Authority having jurisdiction over such Party or its property, enforceable at law or in equity. More specifically, it means all laws, brought into force and effect by the Government of India or the State Governments including Electricity Act, 2003, rules, regulations and notifications made there under, and judgments, decrees, injunctions, writs and orders of any court of record, applicable to this Agreement and the exercise, performance and discharge of the respective rights and obligations of the Parties, as may be in force and effect during the subsistence of this Agreement, as amended from time to time.
- 7) "Business Day" means a day other than Saturday, Sunday, or other day on which Scheduled Banks as defined under the Reserve Bank of India Act, 1934 are authorized or required by law to be closed.
- 8) "Buy Out Value" means the amount as specified in SCHEDULE - B of this Agreement.
- 9) "Change in Law" means that after the date of this Agreement, an Applicable Law is amended, modified, nullified, suspended, repealed, found unconstitutional or unlawful, or changed or affected in any respect by any Applicable Law or by a judicial pronouncement or by subordinate legislations, or executive orders (including circulars and notifications) issued by jurisdictional authorities, which have an impact or implication upon the mutual or individual rights and obligations under and arising out of this Agreement.
- 10) "Commercial Operation Date/COD" means the date, which shall be specified by Power Producer to the Off-taker pursuant to completion of the Initial Period when the Plant is physically complete and is ready for operations.
- 11) "Confidential Information" means information of a confidential or proprietary nature, whether



or not specifically marked as confidential. Such information shall include, but not be limited to, any documentation, records, listing, notes, data, computer disks, files or records, memoranda, designs, financial models, accounts, reference materials, trade-secrets, prices, strategic partners, marketing plans, strategic or other plans, financial analyses, customer names or lists, project opportunities and the like, provided however that Confidential Information does not include information which

- (i) was in the possession of the receiving Party before receipt from the disclosing Party;
 - (ii) is or becomes publicly available other than as a result of unauthorized disclosure by the receiving Party;
 - (iii) is received by the receiving Party from a third party not known by the receiving Party with the exercise of reasonable diligence to be under an obligation of confidentiality respecting the information; or
 - (iv) is independently developed by the receiving Party without reference to information provided by the disclosing Party.
- 12) "Dispute" means a controversy or claim arising out of or relating to this Agreement.
- 13) "Deemed Generation" As explained in SCHEDULE - D
- 14) "Buy Out" means an amount determined in accordance with SCHEDULE - B.
- 15) "Electric Service Power Producer" means any person, including the Local Electric Utility, authorized by the State of Tamil Nadu to provide electric energy and related services to retail users of electricity in the area in which the Site is located.
- 16) "Environmental Attributes" means, carbon trading credits, emissions reductions credits, emissions allowances, green tags, Green-e certifications, or other entitlements, certificates, products, or valuations attributed to the Project and its displacement of conventional energy generation, or any other entitlement pursuant to any central, state, or local program applicable to renewable energy sources, whether legislative or regulatory in origin, as amended from time to time, and excluding, for the avoidance of doubt, any Tax Incentives.
- 17) "Financing Party" means an entity funding the project and is appointed by the Power Producer in its sole discretion to be the Project Owner in its stead, and the term Financing Party shall be construed in accordance with the context in and for the purpose for which it is so used.
- 18) "Financing Agreement" shall mean any agreement/documents executed with the Financing Party.
- 19) "Force Majeure Event" means any act or event that prevents the affected Party from performing its obligations in accordance with this Agreement if such act or event is beyond the reasonable control, and not the result of the fault or negligence, of the affected Party and such Party had been unable to overcome such act or event with the exercise of due diligence (including the expenditure of reasonable sums). Subject to the foregoing, Force Majeure Event may include but are not limited to the following acts or events:
- (i) natural phenomena, such as storms, hurricanes, floods, lightning and earthquakes;
 - (ii) explosions or fires arising from lightning or other causes unrelated to the acts or omissions of the Party seeking to be excused from performance;
 - (iii) acts of war or public disorders, civil disturbances, riots, insurrection, sabotage, epidemic, terrorist acts, or rebellion; and
 - (iv) lock outs, strikes or labor disputes.

Force Majeure Events shall not include equipment failures or acts or omissions of agents, suppliers

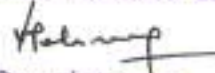


or subcontractors, except to the extent such acts or omissions arise from a Force Majeure Event. Changes in prices for electricity shall not constitute Force Majeure Events.

- 20) "Governmental Authority" means any international, national, federal, provincial, state, municipal, county, regional or local government, administrative, judicial or regulatory entity operating under any Applicable Laws and includes any department, officers, commission, bureau, board, administrative agency or regulatory body of any government.
- 21) "Hazardous Materials" means all hazardous or toxic substances, wastes or other pollutants, including petroleum, petroleum hydrocarbons or petroleum products, petroleum by-products, radioactive materials, asbestos or asbestos-containing materials, gasoline, diesel fuel, pesticides, radon, urea formaldehyde, lead or lead-containing materials, polychlorinated biphenyls; and any other chemicals, materials, substances or wastes in any amount or concentration which are now included in the definition of "hazardous substances," "hazardous materials," "hazardous wastes," "extremely hazardous wastes," "restricted hazardous wastes," "toxic substances," "toxic pollutants," "pollutants," "regulated substances," "solid wastes," or "contaminants" or words of similar import, under any Applicable Law.
- 22) "Indemnified Person" means the person who asserts a right to indemnification under *Clause 16*.
- 23) "Indemnifying Party" means the Party who has the indemnification obligation under *Clause 16* to the Indemnified Person.
- 24) "Initial Period" has the meaning provided in *Clause 3.2*.
- 25) "Land Registry" means the office where real estate records for the Site are customarily filed.
- 26) "Lender" means a person providing construction or permanent financing to Power Producer/Project Owner in connection with installation of the Plant.
- 27) "Liens" has the meaning provided in *Clause 9.2*.
- 28) "Local Electric Utility" means the local electric distribution owner and operator which under the laws of the State of Tamil Nadu are responsible for providing electric distribution and interconnection services to Off-taker at Site.
- 29) "Losses" means any and all losses, liabilities, claims, demands, suits, causes of action, judgments, awards, damages, cleanup and remedial obligations, interest, fines, fees, penalties, costs, and expenses (including all attorney's fees and other costs and expenses incurred in defending any such claims or matters or in asserting or enforcing any indemnity obligation).
- 30) "Off-taker" means Association of Management Studies and its successors and permitted assigns.
- 31) "Operations Period" has the meaning provided in *Clause 3.3*.
- 32) "Operations Year" means a twelve months period beginning at 12:00 am on an anniversary of the Commercial Operations Date and ending at 11:59 pm on the day immediately preceding the next anniversary of the Commercial Operations Date, provided that the first Operations Year shall begin on the Commercial Operations Date.
- 33) "Party" means either Off-taker or Power Producer, as the context shall indicate, and "Parties" means both Off-taker and Power Producer.

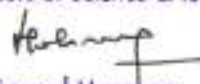


For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus

- 34) "Point of Delivery" has the meaning where solar power interconnection has been made to existing electrical infrastructure of SRM Institute of Science & Technology, Tiruchirappalli campus.
- 35) "Premises" means approximately 1 Lakh sq. feet shadow free Rooftop area, free land and surrounding areas in the premises of Off-taker.
- 36) "Plant" means an integrated system for the generation of electricity from solar energy consisting of the photovoltaic panels and associated equipment to be installed on each of the Premises in accordance with this Agreement, but does not include land and its access rights.
- 37) "Project Owner" means, if applicable, any Person to whom Power Producer transferred the ownership interest in the Project.
- 38) "Power Producer" means *Renew Solar Energy Pvt Ltd* and all successors and assigns.
- 39) "Regulatory Charges" means Cross Subsidy, Electricity duty and any other charges as determined and demanded by "Local Electric Utility" or any other government Entity.
- 40) "Relocation Event" means the relocation of the Project, starting at the shutdown of the Project pursuant to such relocation, and ending at the commercial operation of the Project when such relocated Project is reinstalled at a new location, as determined by the Power Producer in its reasonable discretion.
- 41) "Site" means the real property described under *Exhibit - I*.
- 42) "Tax Incentives" means the investment tax credits (including any grants or payments in lieu thereof) and any tax deductions or other benefits under the Income Tax Act, 1961, or applicable central, state, or local law available as a result of the ownership and operation of the Project or the output generated by the Project (including, without limitation, tax credits, any grants or payments in lieu thereof and accelerated and/or bonus depreciation for the time being in force.)
- 43) "Term" shall have the meaning provided in *Clause 3* hereof.
- 44) "Transfer/Completion Date" shall mean either the date on which the termination is effected as per *Clause 10.1* or if the above is not applicable the expiry of the Term of this Agreement
- 45) "Variable Tariff" means the sum of energy charges applicable, from time to time to users falling within the category applicable for HT consumers under state DISCOM and revised time to time.

For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus



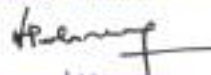
SCHEDULES

SCHEDULE - A: ENERGY PURCHASE RATES

Year	Tariff (Rs./kWh)
1	4.30
2	4.30
3	4.30
4	4.30
5	4.30
6	4.30
7	4.30
8	4.30
9	4.30
10	4.30
11	3.50
12	3.50
13	3.50
14	3.50
15	3.50
16	3.50
17	3.50
18	3.50
19	3.50
20	3.50
21	3.50
22	3.50
23	3.50
24	3.50
25	3.50



For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus

SCHEDULE - B: BUY OUTS

Volunteer Buy Back

If the Off-taker, wish to Buy-back the Solar PV System from the Power Producer, the Off-taker can do it only after completion of 5 years from the date of commissioning with 3 months prior notice to the Power Producer. In case of Volunteer buyback of the plant buyout values will be as per Book value certified by the practicing Chartered Accountant and Chartered Engineer. Volunteer buyback is not allowed for first 5 years

Buyout in case of Default

Year	Buy-back Value Year Beginning Values
	Rs./Wp
1	45.00
2	43.20
3	41.40
4	39.60
5	37.80
6	36.00
7	34.20
8	32.40
9	30.60
10	28.80
11	27.00
12	25.20
13	23.40
14	21.60
15	19.80
16	18.00
17	16.20
18	14.40
19	12.60
20	10.80
21	9.00
22	7.20
23	5.40
24	3.60
25	1.80

(*Note: The above furnished Buy-back Value in Indian Rupees is for 1,000 kW and will vary according to the actual capacity)

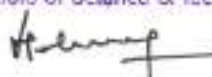
Note:

1. Buy Out value as mentioned in table shall be payable by the off taker in case of default by Off taker. In case of Volunteer buyback of the plant buyout values will be as per Book value certified by the practicing Chartered Accountant and Chartered Engineer. Volunteer buyback is not allowed for first 5 years

2. The Off-taker in all buyout cases will also need to bear all taxes as may be applicable for the purchase of the Plant from the Power Producer including but not limited to indirect and direct taxes and any and all other taxes that may be applicable upon the Off-taker.



For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus

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SCHEDULE - C: ESTIMATED ENERGY SUPPLIED INCLUDING DEEMED GENERATION AT DELIVERY POINT

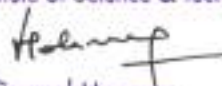
Year	Estimated Generation (kWh)	Guaranteed Generation (kWh)
1	15,04,000	13,83,680
2	14,93,920	13,74,406
3	14,83,850	13,65,142
4	14,73,770	13,55,868
5	14,63,690	13,46,595
6	14,53,620	13,37,330
7	14,43,540	13,28,057
8	14,33,460	13,18,783
9	14,23,390	13,09,519
10	14,13,310	13,00,245
11	14,03,230	12,90,972
12	13,93,160	12,81,707
13	13,83,080	12,72,434
14	13,73,000	12,63,160
15	13,62,920	12,53,886
16	13,52,850	12,44,622
17	13,42,770	12,35,348
18	13,32,690	12,26,075
19	13,22,620	12,16,810
20	13,12,540	12,07,537
21	13,02,460	11,98,263
22	12,92,390	11,88,999
23	12,82,310	11,79,725
24	12,72,230	11,70,452
25	12,62,160	11,61,187

(*Note: The above furnished generation in kWh is for 1,000 kW and will vary according to the actual capacity)

- Global Horizontal Irradiation (GHI) : 1,958.1 kWh/m²
- Yearly Degradation : 0.67% yearly
- Settlement Period : One Year
- In case GHI value drops below 1,900 kWh/m² following method will be used to calculate the Expected Energy Generation



For SRM Institute of Science & Technology


 General Manager
 SRM-Trichy Campus

SCHEDULE - D: DEEMED GENERATION

"Deemed Generation" for the year of operation, will be calculated based on methodology as explained below. Deemed Generation settlement will be done on Monthly basis.

Methodology

Deemed Generation = Downtime X Expected Units Production

Whereas:

Downtime= Duration of Downtime, as recorded by plant performance monitoring system, in minutes

Expected Units Production =Value of energy production in kWh/Minute derived as in Table 1 below.

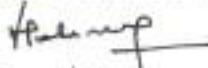
Annual Energy Production = 13.84Lakhs kWh for 1stYear of Operation, for 2nd year and rest of the PPA tenure Energy Production values will be based on energy Generation Units in preceding year factoring the degradation for that year.

Table-1: Methodology to Derive Expected Units Generation.

S. No	Description	Formula	Values	Unit
1.	Annual Energy Production (AEP)		13,83,680	kWh/Annum
2.	Monthly Energy Production (MEP)	MEP = AEP/12	1,15,303	kWh/Month
3.	Daily Energy Production (DEP)	DEP = MEP/30	3,844	kWh/Day
4.	Hourly Energy Production* (HEP)	HEP = DEP/5.5	65	kWh/Hour
5.	Expected Units Production (EUP)	EUP = HEP/60	12	kWh/Minute

*Note: Based on 5.5 Hours of Sunshine.

For SRM Institute of Science & Technology


General Manager
SRM-Trichy Campus





Nirmal Biogen Technology

(Approved by Tamilnadu Energy Development Agency, Govt. of Tamilnadu)

(Approved by ANERT Kerala, Govt. of Kerala)

For Biogas Projects

Specialist : Waste Treatment, All Model Biogas Plant Construction

Chakkupallam Post,

Vil. Kumala, Idukki Dt.

Kerala - 685 509

Phone : 04868 282866

(O) : 04868 282643

(M) : 094430 54231

094478 08081

Email : rajendran.504@gmail.com

Email : nirmalbiogentechnologychakkup@gmail.com

V.R. RAJENDRAN

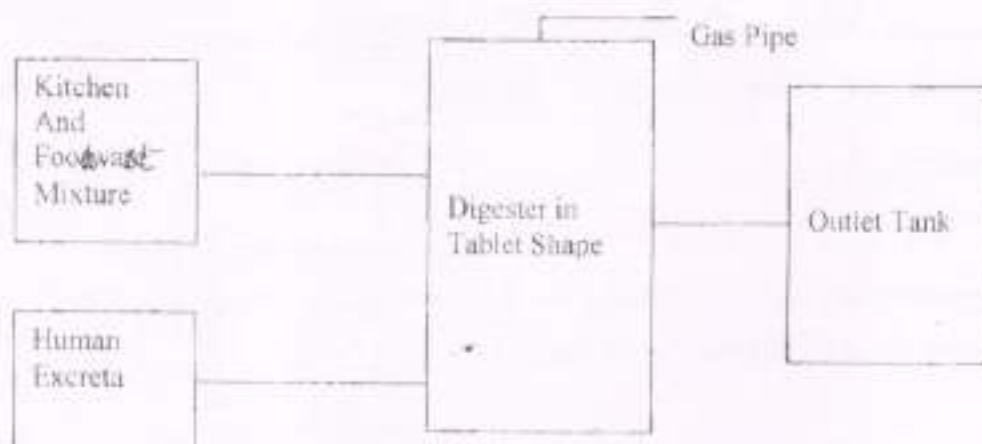
Proprietor

Date 16-2-2011

The following details are furnished for the biogas plant installed at SRM institute of science and Technology Irungar at Samayapuram Village Manachanallore Taluk Trichy District.

1. Biogas Plant Capacity : 90 m³
2. Design Details : The Bio gas Plant was constructed inside the ground in tablet shape by using construction materials
(i.e) Digester in table = 30 feet length and 18 feet depth
Shape & Size
Outlet in rectangular = Length 21 Feet
Shape Breath 18 Feet
Depth 13 Feet

3. Layout of process diagram :



Layout of Bio gas (Process Diagram)



Nirmal Biogen Technology

(Approved by Tamilnadu Energy Development Agency, Govt. of Tamilnadu)

(Approved by ANERT Kerala, Govt. of Kerala)

For Biogas Projects

Specialist : Waste Treatment, All Model Biogas Plant Construction

Chavikulam Post,
Vilakkulam, Idukki Dt.
Kerala - 685 509
Phone : 04868 282886
(O) : 04868 283643
(M) : 094430 54231
094478 06081

Email : rajendran.504@gmail.com

Email : nirmalbiogentechnologychavikulam@gmail.com

4. Input of biogas plant
and quantity
J.R. RAJENDRAN
Proprietor

Night soil (Human Excreta) of 1300 to 2000

Students in the hostel along with all food

Waste and kitchen waste in SRM college

Premises

Process Description :

Biogas is obtained by anaerobic digestion (Fermentation (Fermentation in the absence of air and pressure developed inside earth) cellulose containing the organic materials of Night soil (Human Excreta). Kitchen and food waste available in SRM institute. This was constructed in the underground in tablet shape by using constructing materials with special high technology and the biogas produced due to the fermentation inside the biogas plant. Naturally the poisonous bad toilet smell and food waste, kitchen waste bad smell were removed from the waste as the biogas is used for cooking purpose. Therefore the property of the waste is naturally changed. the processing of the such waste in biogas plants provide clean gaseous fuel for cooking purpose. The output water from these biogas plant is a very good bio fertilizer and can be used for the gardens of SRM college. The foremost factor in favour of this technology is its environment friendliness as its helps efficient waste utilization and nutrient recycling. Therefore the biogas plant also work as waste disposal system

No. of LPG Cylinder (savings)

For every four hundred students human excreta with food waste kitchen waste approximately one LPG cylinder per day can be saved. Depending upon the quantity of waste received, this may be calculated.

Proprietor

Nirmal Biogas Technology



Dr. A.R. Shukla
Adviser (Bio-Energy)

भारत सरकार

नवीन और नवीकरणीय ऊर्जा मंत्रालय

Government of India

MINISTRY OF NEW AND RENEWABLE ENERGY

ब्लॉक नं. 14, केंद्रीय कार्यालय परिसर, लोदी रोड, नई दिल्ली - 110003
BLOCK NO. 14, C.G.O. COMPLEX, LODI ROAD, NEW DELHI - 110 003

Fax: 011-2436-296

Telegram: RENEWABLE

Telefax: 24361684

Mobile: 9810585602

E-mail: shukla@mnre.nic.in

O. No.

1-1/2011-BE

Dated 18.01.2011

Dear Sir,

Biogas fertilizer plants are having potential for processing of various types of biomass wastes namely cattle dung, agro and garden waste and kitchen wastes of households, canteens and restaurants of hotels, institutions/industries and dairies and sanitary waste generated in rural, semi-urban and urban areas. The processing of such wastes in biogas plants provide clean, green fuel for utilization in cooking, heating, cooling, electricity generation and mechanical power for meeting stationary and transportation needs. The bio-product in the form of slurry is a good bio-fertilizer which can be directly used as organic manure for improving and sustaining soil fertility. Biogas and bio-fertilizer together make biogas-fertilizer plants economically viable. The biogas plants also work as waste disposal systems.

2. As you may be aware that for installation of medium size and family type biogas plants the Ministry is implementing Biogas based Distributed Grid Power Generation Programme (BPGP); National Biogas & Manure Management Programme (NBMMP); Demonstration of Integrated Technology Package on Biogas Generation, Purification and Bottling (BGIP) and Special Area Demonstration Project Scheme.

3. In order to increase the reach and wider application and to expand market for medium size biogas plants in the capacity range of $10m^3$ – $3000m^3$ per day and to assess the implementation capability of manufacturers, technology providers and project executors of such plants in the country a meeting is scheduled to be held on 2nd February 2011 (Wednesday) at 10:30 AM in MNRE Conference Room No. 108, Block-14, C.G.O. Complex, New Delhi. The meeting will be chaired by Shri Deepak Gupta, Secretary, MNRE. A copy of the issues for discussion is attached herewith.

4. I request you to make it convenient to attend the meeting and confirm your participation by e-mail/fax immediately.

Yours sincerely,

(Dr. A.R. Shukla)
Adviser (Bio-Energy)

Encl. Issues for discussion

Shri. V. R. Rajendran
Proprietor,
Nirmal Biogreen Technology
Chakkupallam, Kumbily, Idukki Dt.
Kerala 685509

(DUPLICATE FOR TRANSPORTER)



OSWAL TRADERS

OSWAL TRADERS
OLD-118, NEW-242 GOVINDAPPA STREET
CHENNAI - 600001
GSTIN/UIN: 33APEPS8952A1ZW
State Name : Tamil Nadu, Code : 33
Contact : 42153812, 9840676605, 9941324601
E-Mail : oswaltraders@yahoo.in

Consignee (Ship to)

TRICHY SRM MEDICAL COLLEGE HOSPITAL & RESEARCH CENT
SRM TRICHY CAMPUS, IRRUNGALLUR, TRICHY
GSTIN/UIN : 33AADTS368BK1Z0
State Name : Tamil Nadu, Code : 33

Contact person : Purchase Department
Contact : 0431-3058669, 0431-3058677
E-Mail : COMMERCIALCMCH@GMAIL.COM

Buyer (Bill to)

TRICHY SRM MEDICAL COLLEGE HOSPITAL & RESEARCH CENT
SRM TRICHY CAMPUS, IRRUNGALLUR, TRICHY
GSTIN/UIN : 33AADTS3688K1Z0

State Name : Tamil Nadu, Code : 33
Contact person : Purchase Department
Contact : 0431-3056669, 0431-3056677
E-Mail : COMMERCIALCMCH@GMAIL.COM

Invoice No.	e-Way Bill No.	Dated
230792	831389417395	14-Jul-22
Delivery Note		Mode/Terms of Payment
		THIRTY DAYS
Reference No. & Date.		Other References
230792 dt. 14-Jul-22		
Buyer's Order No.		Dated
Non-Con-4-Electrical Maintenance		14-Jul-21
Dispatch Doc No.		Delivery Note Date
Dispatched through		Destination
TEMPO		RAMAPURAM / TRICHY
Bill of Lading/LR-RR No.		Motor Vehicle No.
		TN04AH7457
Terms of Delivery		

Terms of Delivery

Sl No	Description of Goods	HSN/SAC	Quantity	Rate per nos	Disc %	Amount
1	LED Street Light Fitting 70 Watts Led Street Light Fitting <i>Make : Philips</i> BRP 409 LED 82S CW PSU GR 2YEAR WARRANTY	940540	80 nos	3,928.57	3%	3,04,857.03
						CGST OUTWARD
						SGST OUTWARD
						ROUND OFF
	Total		80 nos			₹ 3,41,440.00

Amount Chargeable (in words)

INR Three Lakh Forty One Thousand Four Hundred Forty Only

Taxable Value	Central Tax		State Tax		Total
	Rate	Amount	Rate	Amount	Tax Amount
3,04,857.03	6%	18,291.42	6%	18,291.42	36,582.84
Total: 3,04,857.03		18,291.42		18,291.42	36,582.84

Tax Amount (in words) : **INR Thirty Six Thousand Five Hundred Eighty Two and Eighty Four paise Only**

Company's PAN : APEPS8952A

Declaration

We declare that this invoice shows the actual price of the goods described and that all particulars are true and correct.

Customer's Seal and Signature

Company's Bank Details

A/c Holder's Name: OSWAL TRADERS

Bank Name : IDBI BANK

A/c No. : 0907102000058706

Branch & IFS Code: SKPAS COLLEGE_EXTN_COUNTER & IBKL0000907

for OSWAL TRADERS

OSWAL TRADERS

116. Gavindran Authorized Signatory

SUBJECT TO CHENNAI JURISDICTION

OSWAL TRADERS

OSWAL TRADERS
OLD-116, NEW-242 GOVINDAPPA STREET
CHENNAI - 600001
GSTIN/UIN: 33AEP58952A1ZW
State Name: Tamil Nadu, Code: 33
Contact: 42153812, 9840679605, 9941324601
E-Mail: oswal-traders@yahoo.in

Consignee (Ship to)

SRM INSTITUTE OF SCIENCE & TECHNOLOGY
IRUNGALUR - PO, TRICHY, PIN 621105
GSTIN/UIN: 33AADTS3688K1Z0
State Name: Tamil Nadu, Code: 33
E-Mail: mymailbox.srm@gmail.com

Buyer (Bill to)

SRM INSTITUTE OF SCIENCE & TECHNOLOGY
IRUNGALUR - PO, TRICHY, PIN 621105
GSTIN/UIN: 33AADTS3688K1Z0
State Name: Tamil Nadu, Code: 33
E-Mail: mymailbox.srm@gmail.com

TAX INVOICE

Invoice No.

231331

591410129156

12-Sep-22

Delivery Note

Mode/Terms of Payment

SEVEN DAYS FROM DELIVERY

Other References

Reference No. & Date

231331 dt. 12-Sep-22

Buyer's Order No.

PO.NO.1570/SEP 2022

Dispatch Doc No.

Dated

9-Sep-22

Delivery Note Date

Dispatched through

RAMAPURAM CAMPUS

Destination

TRICHY

Terms of Delivery

GOODS WILL BE DELIVERED

THROUGH EASWARI ENGINEERING COLLEGE CAMPUS

Sl No	Description of Goods	HSN/SAC	GST Rate	Quantity	Rate	per	Disc. %	Amount
1	Tubelight Fittings 36W TUBELIGHT FITTING MAKE: CROMPTON MODEL: CG-GOLD	940510	18 %	40 nos	222.50	nos		8,900.00
2	36 Watts Tubelight 36W TUBELIGHT MAKE: CROMPTON	853931	18 %	36 nos	37.40	nos		1,346.40
3	Capacitors (Electrical Equipments) 2.50 MFD CAPACITOR MAKE: KELTRON	853229	18 %	25 nos	21.30	nos		532.50
4	Choke (Light Fittings) 36W ELECTRONIC CHOKE MAKE: PHILIPS MODEL: SUMO XTREME	85041010	18 %	20 nos	97.00	nos		1,940.00
5	4 Module Front Plate 4-MODULE FRONT PLATE MAKE: ELLEYS MODEL: DSQ	853810	18 %	20 nos	52.00	nos		1,040.00
6	6 A / 10 Amps 1 Way Switch 6A SWITCH MAKE: ELLEYS MODEL: GAMA	853610	18 %	20 nos	21.35	nos		427.00
7	6 A / 10 Amps Socket 6A/10A SOCKET MAKE: ELLEYS	853669	18 %	20 nos	57.20	nos		1,144.00
8	8 Module PVC Box 8 M PVC BOX MAKE: ANCHOR	85389000	18 %	4 nos	76.50	nos		306.00
9	8 Module Front Plate 8 M PLATE MAKE: ELLEYS MODEL: DSQ	853810	18 %	4 nos	86.00	nos		344.00
10	LED 2feet Tubelight Fitting 9W LED 2 FEET FITTING MAKE: PHILIPS	940510	18 %	20 nos	182.20	nos		3,644.00
11	Insulation Tape PVC TAPE ROLL Make: DEER	854690	18 %	20 nos	10.00	nos		200.00
12	LED 4feet Tubelight Fitting 20W LED 4 FEET FITTING MAKE: PHILIPS	940510	18 %	20 nos	152.64	nos		3,050.80
								22,874.70
								2,058.73
								2,058.73

CGST OUTWARD
SGST OUTWARD

continued to page number 2

SUBJECT TO CHENNAI JURISDICTION
This is a Computer Generated Invoice